JAMMU AND KASHMIR STATE POWER DEVELOPMENT CORPORATION LIMITED

STANDARD BIDDING DOCUMENT

FOR

EMERGENCY REPAIR AND RESTORATION OF VARIOUS MOTORS AND PUMPS OF POWER HOUSE BHEP-I

OFFICE OF THE EXECUTIVE ENGINEER, GENERATION DIVISION, BHEP-I CHANDERKOTE
Email *xenegenbhep1@gmail.com*

No: GD/BHEP-I/T/08-14
Dated: 09-07-2026

e-NIT NO: 02/GD/BHEP-I/2026-27 dated:09-07-2026

E-tender (in two parts) on behalf of Managing Director, Jammu and Kashmir State Power Development Corporation, Office of Executive Engineer Generation Division, BHEP-I invites online "Emergency repair and restoration of various motors and pumps of Power House BHEP-I" as per the details tabulated below:

S No	Scope of work	Estimated Cost (Rs.) inclusive of all taxes & duties	EMD	Cost of Tender document
1	Emergency repair and restoration of various motors and pumps of Power House BHEP-I	Rs 7,18,620/-	14,372/-	1,000/-

Position of TS, AAA: Accorded
Position of Funds: Available

The Bidding documents consisting of qualifying information, eligibility criteria, specifications, drawings, bill of quantities (BOQ), set of terms and conditions of contract and other details can be seen/downloaded from the website www.jktenders.gov.in as per schedule of dates given below:

1	**Date of Issue of Tender Notice**	**10-07-2026**
2	**Period of downloading of bidding documents**	**10-07-2026**
3	**Prebid Meeting**	**14-07-2026 (12:00Hrs)**
3	**Bid submission Start Date**	**16-07-2026**
4	**Bid Submission End Date**	**25-07-2026**
5	**Date & time of opening of Bids (Online)**	**27-07-2026 (14:00Hrs)**

1. The entire bidding process shall be conducted online. Price bids and pre-qualification documents shall not be submitted in physical form. However, the original documents shall be submitted to JKPDC/Department by the bidder declared as the Lowest Bidder (L1) after the opening of the financial bid, as and when required for verification. In case any discrepancy is found between the documents uploaded online and the original documents submitted by the bidder, the bid shall be rejected forthwith.
2. As per the guidelines of the J&K Finance Department, the cost of the tender document shall be paid only through e-Challan, Treasury Challan/Receipt, or Online Bank Transfer

in favour of the Chief Pay & Accounts Officer, BHEP, Chanderkote, using the following bank details:
Account Name: Chief Pay & Accounts Officer, BHEP, Chanderkote
Account No.: 0240010200000002
IFSC Code: JAKA0CHNDAR
Bank: J&K Bank Ltd., Chanderkote Branch

3. The prospective bidder shall upload a scanned copy of the payment receipt/challan along with the online Technical Bid as proof of payment. Failure to upload the requisite proof of payment shall render the bid liable for rejection.

4. The Earnest Money Deposit (EMD) or Bid Security shall be furnished in the form of a Bank Guarantee, Call Deposit Receipt (CDR), Fixed Deposit Receipt (FDR) issued by any Indian Nationalized/Scheduled Bank, duly pledged in favor of the Chief Pay & Accounts Officer, BHEP, Chanderkote, or through online transfer to the following account:
   Account Name: Chief Pay & Accounts Officer, BHEP, Chanderkote
   Account Number: 0240 0102 0000 0002
   IFSC Code: JAKA0CHNDAR, Bank: J&K Bank Ltd., Chanderkote Branch
   The prospective bidders shall not be required to submit the original EMD at the time of bid submission. Instead, a scanned copy of the EMD instrument or proof of online transfer shall be uploaded along with the online Technical Bid.
   However, after the opening of the Financial Bid, the bidder declared as the Lowest Evaluated Bidder (L1) shall mandatorily submit the original EMD instrument to the concerned Division for verification.
   If any discrepancy is found between the documents uploaded online and the original documents submitted subsequently, the bid shall be liable to rejection, in addition to any other action as deemed appropriate under the applicable rules and conditions of the tender.

5. The Tender Cost, Earnest Money Deposit (EMD), and all pre-qualification/technical bid documents shall be submitted online on or before the prescribed date and time for submission of bids. Any e-bid not accompanied by the prescribed Tender Cost and Earnest Money Deposit (EMD) of the requisite amount shall be summarily rejected, unless the bidder is exempted from such payment under the applicable provisions governing MSMEs or Start-ups for the relevant goods, works, or services covered under the tender.

6. JKPDC shall not be held responsible for any delay arising due to any reason whatsoever.

7. JKPDC Management reserves the right to cancel the bidding process at any stage without assigning any reason.

Executive Engineer
Generation Division BHEP-I
Chanderkote

Copy to:
1. Chief Engineer (E) BHEP Chanderkote for information.
2. Superintending Engineer (E) BHEP Chanderkote for information.
3. Chief Pay & Accounts Officer, BHEP Chanderkote for information.
4. Assistant Executive Engineer, Sub Div stores, BHEP-I for information.
5. Assistant Executive Engineer, Maintenance, BHEP-I for information

6. Notice Board
7. webupdates@jkpdcl.com for Uploading the NIT on JKPDC site.

CONTENT OF
STANDARD BIDDING DOCUMENT (SBD)

The SBD includes:

A. **Introduction**
B. **Scope of work**
C. **Bid General conditions of the contract**
D. **Special conditions of the contract**
E. **Annexures**

Note: *Bidders are advised to carefully examine all instructions, forms, terms and conditions, and technical specifications contained in the e-Bid document before submitting their bids. Failure to furnish all the information and documents required under the e-Bid document, or submission of a bid that is not substantially responsive to the requirements of the e-Bid document in every respect, shall be entirely at the bidder's risk and may result in the rejection of the bid.*

A. INTRODUCTION:

The Government of Jammu & Kashmir incorporated the Jammu & Kashmir State Power Development Corporation Limited (JKSPDC) as a Private Limited Company on 16 February 1995. The Baglihar Hydroelectric Power Project (BHEP–900 MW) is one of the major hydroelectric projects of Jammu & Kashmir, in addition to several other power projects being operated by JKSPDC in the Union Territory.

JKSPDC (hereinafter referred to as the **"Purchaser"** invites online bids for the supply of the items specified in the tender document. The bidding process shall be conducted electronically through the J&K Government e-Procurement Portal (**www.jktenders.gov.in**). The bids shall be received, opened, and evaluated online in accordance with the provisions of this tender document. All bidders shall prepare and submit their bids strictly in compliance with the instructions, terms and conditions, and technical specifications contained herein.

Project Location: The Baglihar Hydroelectric Power Project (900 MW) is a run-of-the-river hydroelectric project constructed on the River Chenab in Ramban District, Jammu & Kashmir, India. The project was conceived in 1992, received administrative approval in 1996, and construction commenced in 1999.

Cost of Bidding: The bidder shall bear all costs and expenses associated with the preparation and submission of its bid. The Purchaser shall not, under any circumstances, be responsible or liable for such costs, irrespective of the conduct, outcome, cancellation, or completion of the bidding process.
This version improves grammar, legal clarity, and consistency while maintaining the intent and format expected in a standard government tender document.

B. SCOPE OF WORK:

Repair of 2 no. 110 KW cooling water motors as per the details below:

a. Lifting of Motors from BHEP-I to workshop and vice versa is in the scope of the contractor.
b. Dismantling of motor and removing of damaged stator winding of both the motors.
c. Intimation to EIC for inspection after removing of damaged stator winding of both the motors for witnessing the actual SWG and turns of existing winding and ensuring of similar SWG and turns of winding to be install (as per d).
d. Rewinding of motor using Class 200 enamelled round copper of similar SWG winding wire with dual coated material, H-Class insulation, Varnishing and Oven baking.
e. Replacement of Bearings, terminal block and PTC sensor if required is in the scope of contractor. (Bearings are in the scope of Contractor)
f. Considering the capacity and application of both the motors and to ensure the quality of work, frequent inspection of motors (2-3) in workshop during their repair may be required, as such preference may be given to the contractors who have established workshops in UT J&K of Only.
g. After completion of rewinding work painting of both the motors with navy blue color.
h. Measurement of winding and insulation resistance and witnessing of same by EIC or his representative by personally or virtually before the dispatch of motors for BHEP-I.

Technical details of motor to be repair.

Sr. No.	Specifications	
1	Capacity of Motor:	110KW
2	RPM:	1485-1500 rpm
3	Power factor (cosø):	0.88
4	Duty:	Continuous duty S1.
5	IP rating:	IP 55.
6	Insulation class:	F
7	Frequency	50Hz
8	No. of Phase	03
9	Current ratings:	191 amps at 400volts, 201 amps at 380 volts, 182 amps at 420 volts.
10	IM CODE:	B3
11	Bearings:	6319C3 for DE & NDE side
12	PTC setting:	150 °C
13	IS/IEC Standard	IS/IEC 60034-1

C. GENERAL TERMS & CONDITIONS AND INSTRUCTIONS TO THE TENDERERS

1.0 Before the last date of Invitation, receipt & opening of bid with instructions to bidders e-tendering

1.1 For and on behalf of M.D. JKSPDC, Jammu & Kashmir, online STE e-bid is hereby invited for work detailed under "Scope of work", as per terms and conditions, technical specifications and schedule thereof.

1.2 Bidders are advised to download bid submission manual from "downloads" option as well as from "bidder manual kit" on website www.jktenders.gov.in to familiarize with bid submission process.

1.3 Bidders must submit their bid ONLINE in electronic format with digital signature.

1.4 No Price bid will be accepted in physical form.

1.5 Bidders must ensure to upload scanned copy of all necessary technical and commercial documents including scanned copies of Earnest Money, cost of tender document etc.

(Scan all documents on 200 dpi)

2.0 Preparation of Bids

2.1 Language of bid:

The bid prepared by the Bidder and all correspondence and documents related to the bid exchanged by the Bidder and the Purchaser shall be written in English language, provided that any printed literature furnished by the Bidder may be written in another language, as long as such literature is accompanied by a translation of its pertinent passages in English language, in which case, for purposes of interpretation of the bid, the translation in English shall govern.

2.2 Bid Currency:

All figures mentioned under the commercial bid should be in Indian National Rupee (INR). Commercial Proposals in any currency other than INR would be considered non-responsive and hence rejected.

3.0 The e-tender be submitted in two covers as under:

3.1 **Cover-I:**

Scanned Copy of the following:
Earnest Money Deposit
Cost of tender document.
Following documents to be uploaded with the bid. failure to attach these documents online may result in outright rejection of the bid.

Prequalification / Eligibility Documents:

S. No.	Particulars
1.	Proof of purchase of tender document
2.	Proof of EMD
3.	Proof for Annual turnover for the last three years duly certified by chartered accountant.
4.	Copy of GSTIN No.
5.	Copy of work order of similar works. Experience of having successfully completed similar works during last 7 years Prior to the last date of bid submission & should be either of the following; (a) Three similar completed works each costing not less than the amount equal to 40% of the estimated cost. Or (b) Two similar completed works not less than the amount equal to 50 % of the estimated cost. Or (c) One similar completed work costing not less than the amount equal to 80% of the estimated cost

	Similar work means repair of "3-phase motors of minimum capacity 80 KW."
6.	Declaration/undertaking as per clause 19 of Special conditions
7.	Undertaking as per Annexure-A

3.2 **Cover -II: PRICE BID (Financial Cover)**

Price bid as per Bill of Quantity (Online submission only).

Final rates quoted by the bidder should include all types of taxes and duties. BIDDER SHOULD CAREFULLY EXAMINE THE BOQ BEFORE QUOTING THE PRICE.

4. After the prescribed date and time for submission of bids, only Part-I (Technical and Pre-Qualification Bid) shall be opened initially. The Part-II (Price Bid) shall be opened only in respect of those bidders whose Part-I bids, upon detailed scrutiny and evaluation against the prescribed technical and pre-qualification requirements, are found to be substantially responsive and qualified.

5. The bid shall be complete in all respects and shall conform to the requirements of the bidding document. Bidders are advised to carefully study all the terms and conditions of the bidding document, including the technical specifications, before submitting their bids to ensure that the bids are complete, responsive, and comprehensive.

   Failure to comply with any of the provisions, terms, conditions, or instructions contained in the bidding document, or submission of incomplete or non-responsive information that materially affects the evaluation or fair comparison of bids, may result in rejection of the bid, notwithstanding that it may otherwise be the lowest or most competitive offer.

6. Conditional bids, or bids containing deviations, reservations, or qualifications to the terms and conditions of the bidding document, may be treated as non-responsive and are liable to be rejected.

7. No request for modification, addition, deletion, substitution, or withdrawal of any part of the bid, received by post, by hand, by fax shall be entertained or considered.

8. **Modifications prior to date of tender opening:**

   The Executive Engineer, Generation Division, BHEP-I, Chanderkote, reserves the right to amend or modify the specifications, terms, conditions, or any other provisions of the bidding document at any time prior to the deadline for submission of bids. Any such amendment or modification shall be issued as an addendum/corrigendum to the e-NIT and shall be published through the same e-procurement portal used for publication of the original e-NIT.

   Where considered necessary, the deadline for submission of bids may also be extended to enable prospective bidders to take the addendum/corrigendum into account while preparing their bids. Such extension of time shall be at the sole discretion of the Executive Engineer, Generation Division, BHEP-I, Chanderkote.

9.0 **Earnest Money & Cost of Tender Document**

9.1 Earnest Money in the shape of a Bank Guarantee, Call Deposit Receipt (CDR), Fixed Deposit Receipt (FDR) issued by any Indian Nationalized/Scheduled Bank pledged to the Chief Pay & Accounts Officer, BHEP, Chanderkote must be uploaded in the Cover-I of the tender.

9.2 Cost of Tender Document (Nonrefundable) in the shape of **e-Challan, Treasury Challan/Receipt, or Online Bank Transfer** pledged to the Chief Pay & Accounts Officer BHEP, Chanderkote must be uploaded in the Cover-I of the tender.

9.3 Tenders not accompanied with required amount of earnest money & Cost of Tender Document will be rejected and their price bid shall not be opened.

9.4 The Earnest Money Deposit (EMD) of the bidder shall be liable to be forfeited if the bidder:

(a) withdraws or modifies its bid during the period of bid validity;

(b) refuses or fails to comply with any of the terms and conditions of the bidding document or the commitments made in its bid;

(c) fails to furnish the required Performance Security or execute the Contract Agreement within the stipulated time after issuance of the Letter of Acceptance (LoA), where applicable; or

(d) is found to have submitted forged, fabricated, false, or misleading documents, declarations, or information at any stage of the bidding process.

9.5 Earnest money deposit shall be released in favor of unsuccessful tenderer(s) who are otherwise not forfeited as per clause 9.4

10 The tendering authority reserves the right to accept or reject any or all bids and to cancel the bidding process at any time without assigning any reason prior to the award of the contract.

11. The tenders shall be valid for a period of 180 days from the date of opening of the Bids.

D. SPECIAL CONDITIONS

1. Rates and Taxes

The rates quoted by the bidder shall be firm and fixed for the entire contract period and shall be on F.O.R. Site basis (Baglihar Hydroelectric Project, Chanderkote, Ramban, J&K). The quoted rates shall be inclusive of all charges, including packing and forwarding, loading, transportation, unloading, transit insurance, and GST, and no additional payment on any account shall be admissible.

2. Deductions

Income Tax, GST Tax Deducted at Source (TDS), and any other statutory deductions or taxes, as applicable under the prevailing laws of the Government of India and the Government of Jammu & Kashmir/Union Territory of Jammu & Kashmir, shall be deducted from the contractor's bills at the prescribed rates.

3. Bid Validity

The bids shall remain valid for a period of **180 (One Hundred Eighty) days** from the date of opening of the Bid.

4. Payment Terms:

(i) Ninety percent (90%) of the contract value shall be released after the successful completion of the work in all respects, submission of the contractor's bill along with all requisite documents, and certification by the Engineer-in-Charge.

(ii) The balance Ten percent (10%) shall be released after the expiry of the Defect Liability Period (DLP) of 12 months, subject to the satisfactory performance of the work and rectification of any defects observed during the DLP.

OR

At the option of the contractor, 100% payment may be released after the successful completion of the work and submission of all requisite documents, provided the contractor furnishes a Bank Guarantee equivalent to 10% of the contract value,

issued by a Scheduled/Nationalised Bank and pledged in favour of the Chief Pay & Accounts Officer, Baglihar Hydroelectric Project (BHEP), Chanderkote. The Bank Guarantee shall remain valid for the entire Defect Liability Period (12 months) plus 60 days.

5. **Delivery Period: The repaired motors to be delivered back to Powerhouse, BHEP-I within 90 days from the date of LOA.**

6. **Agreement.**
After the issuance of award, the Superintending engineer shall prepare the agreement on stamped paper on the form annexed herewith within 21 days. The contractor shall be furnished with a copy of executed agreement duly signed by the the Superintending engineer and contractor in presence of at least two witnesses from both sides. The cost incurred on preparation of the agreement shall be borne by the contractor.

7. **Defect Liability Period:**
The repaired motor shall be warranted against any defect in material, workmanship, or performance for a period of **12 (Twelve) months** from the date of successful completion of the work and acceptance by the Purchaser.
Any defect or malfunction noticed during the **Defect Liability/Warranty Period** shall be rectified or the defective component replaced by the contractor, at no additional cost to the Purchaser, within **30 days** from the date of receipt of written intimation.
All implied and or any statutory warranty is excluded.

8. **Penalty / Liquidated Damages for Delay**
If the contractor fails to complete the work within the stipulated completion period, including any extension of time granted by the Purchaser, the contractor shall be liable to pay **Liquidated Damages (LD)** at the rate of **0.5% (Zero Point Five Percent)** of the value of the delayed portion of the work for each week or part thereof of delay, subject to a maximum of **5% (Five Percent)** of the value of such delayed work.
The recovery of Liquidated Damages shall not relieve the contractor of the obligation to complete the work or discharge any other obligations and liabilities under the Contract.

The levy of Liquidated Damages under this clause shall be **without prejudice** to any other rights or remedies available to the Purchaser under the Contract or applicable law.

9. **Extension of time for completion:**
The Contractor may apply for an extension of the stipulated time for completion of the work if the completion is delayed due to any of the following causes:

a) Extra or additional work ordered in writing by the Purchaser/Engineer-in-Charge;

b) Suspension of the work by the Purchaser or the Engineer-in-Charge for reasons not attributable to the Contractor;

c) Force Majeure events affecting the execution of the work; or

d) Any other cause beyond the reasonable control of the Contractor, which, in the opinion of the Engineer-in-Charge, justifies the grant of an extension of time.

The Contractor shall submit a written notice of its intention to claim an extension of time to the Engineer-in-Charge within **14 (Fourteen) days** from the date of occurrence of, or the date on which the Contractor became aware of, the event giving rise to the claim. The notice shall be followed, as soon as practicable, by a detailed claim supported by all relevant documents and particulars, including the impact of the event on the completion schedule and, where applicable, any claim for additional cost.

The Engineer-in-Charge shall examine the Contractor's claim and supporting documents and may grant, prospectively or retrospectively, such extension of time as is considered fair and reasonable, provided that the delay is not attributable to any act, omission, negligence, or default of the Contractor.

The Engineer-in-Charge shall communicate the decision on the Contractor's claim for extension of time in writing. Grant of an extension of time shall not, by itself, entitle the Contractor to any additional payment unless such entitlement is expressly provided under the Contract.

10. Stage Inspection at Contractor's Workshop

The Contractor shall facilitate **two (02) stage inspections** at its workshop/manufacturing facility by **up to two (02) officials nominated by the Engineer-in-Charge (EIC)** during the execution of the work. The inspections shall be conducted at the following stages:

a. First Stage Inspection:
After removal of the damaged stator winding of both motors, the Contractor shall intimate the Engineer-in-Charge sufficiently in advance for inspection. The inspection shall include witnessing the actual **Stator Winding Gauge (SWG)** and the number of turns of the existing winding to ensure that the rewinding is carried out using the **same SWG and number of turns**, unless otherwise approved in writing by the Engineer-in-Charge.

b. Second Stage Inspection:
After completion of rewinding and before dispatch of the motors to BHEP-I, the Contractor shall intimate the Engineer-in-Charge for witnessing the measurement of winding resistance and insulation resistance of both motors. This inspection may be carried out **either physically or through virtual mode**, as decided by the Engineer-in-Charge.

The Contractor shall provide all necessary facilities, instruments, records, and assistance required for conducting the above inspections. In case the Engineer-in-Charge decides to conduct the inspection physically, **the entire cost of travel (to and fro), local transportation, boarding, lodging, meals, and all other incidental expenses for up to two (02) officials nominated by the Engineer-in-Charge shall be borne by the Contractor.** No separate payment or reimbursement on this account shall be admissible from the Purchaser.

The above inspections shall not relieve the Contractor of any responsibility for ensuring that the repaired motors conform to the technical specifications and all other contractual requirements.

11. ENGINEER-IN-CHARGE

Executive Engineer, Generation Division, BHEP-I, Chanderkote or his authorized representative shall be the Engineer-in-Charge of the said contract.

12. Paying Authority

Chief pay & Accounts officer, BHEP, Chanderkote.

13. FORCE MAJEURE

The Contractor will not come in default with any of his obligations under the Contract and Employer shall extend the respective deadlines for performance of such obligations accordingly if by reason of an event beyond Contractor's control the Contractor is impeded to perform such obligation ("Force Majeure"). Force Majeure includes interferences to the execution of the Contract, whether foreseeable or not, such as but not limited to:

- War (declared or undeclared), military mobilization, invasion, requisition or embargo, revolutions or riots, and other hostilities,
- Rebellion, revolution, insurrection, military or usurped power and civil war,
- Ionizing radiation or contamination by radio-activity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel, radio-active toxic explosives, or other hazardous properties of any explosive nuclear assembly or nuclear components thereof, natural calamities,
- Epidemic diseases, acts of sabotage or terrorism,
- During site installation: travel warnings of the Ministry of Foreign Affairs or the respective embassy or consulate of the Contractor's country for the Country or the part of the Country where the Site is located,
- Breakdown or major repair of major factory equipment directly used and critical to the manufacture of the Equipment,
- Accidents occurring in connection with transportation,
- Changes in any law, acts, decrees, orders or regulation of any governmental authority,
- Acts of God, embargos, business restrictions by applicable export control regulations or acts of such authorities.

The Contractor shall notify the Employer in writing within 28 days following the occurrence of a Force Majeure event, of the causes of delay and within a reasonable subsequent period giving detailed information concerning the event, the effect thereof and his estimate of the extension of time necessitated by such event and the respective extra costs, which the Employer shall reimburse to the Contractor upon request.

14. **Limitation of Liability**

Except in cases of fraud, willful misconduct, gross negligence, or breach of confidentiality or intellectual property rights, neither Party shall be liable to the other for any indirect, incidental, special, or consequential loss or damage, including loss of profit, loss of production, loss of use, or loss of business opportunity, arising out of or in connection with this Contract.

The aggregate liability of the Contractor arising out of or in connection with this Contract, whether in contract, tort, or otherwise, shall not exceed the total Contract Price.

The above limitation of liability shall **not** apply to:

a) the Contractor's liability for repairing or replacing defective work, materials, or components during the Warranty/Defect Liability Period;
b) Liquidated Damages payable under the Contract;
c) recovery of payments made for work not executed or not conforming to the Contract;
d) losses arising from fraud, wilful misconduct, or gross negligence of the Contractor;

e) any liability arising from infringement of patents, copyrights, trademarks, or other intellectual property rights; and
f) any liability which cannot be excluded or limited under applicable law.

15. Termination of contract

The JKSPDC may terminate the contract if the contractor repeatedly fails to comply with any of his material contractual obligations. The JKSPDC may only terminate for delay once the maximum of liquidated damages.

In any case, the JKSPDC may only terminate the Contract upon giving 30 days' prior notice of such termination and after having given the Contractor a reasonable cure period provided that the Contractor has not managed to cure such material contractual obligation within said cure period.

Upon issuing or receiving such notice of termination, the Contractor shall (i) stop all Works, (ii) place no further orders with its subcontractors related to the Contract and (iii) terminate to the extent possible any relation with subcontractors related to the Contract.

In case JKSPDC feels that work is not being carried out in accordance with the schedule, as per technical requirements or as per instructions/directions of Engineer I/C and there is likelihood of abnormal delay in completion of work or likelihood of doing the work not as per specifications and norms leading to any problem in running of the Unit, JKSPDC is at liberty to stop the work in between and get the work completed from any other source at the risk and cost of the contractor.

16. Governing Law and Jurisdiction

This Contract shall be governed by and construed in accordance with the laws of India. Subject to the provisions of the Contract relating to dispute resolution, all disputes, claims, or legal proceedings arising out of or in connection with this Contract shall be subject to the exclusive jurisdiction of the competent courts at Jammu, Union Territory of Jammu & Kashmir.

17. **Arbitration**

In the event of any dispute, difference, claim, or question arising out of or in connection with this Contract, including its interpretation, performance, breach, termination, or validity, the parties shall endeavour to resolve the dispute amicably through mutual discussions.

If the dispute is not resolved amicably within **30 (Thirty) days**, the same shall be referred to arbitration in accordance with the provisions of the **Arbitration and Conciliation Act, 1996**, as amended from time to time.

The arbitral tribunal shall consist of a **sole arbitrator** to be appointed by the **Managing Director, JKSPDC**, or by such authority as may be authorised by JKSPDC in accordance with the provisions of the Arbitration and Conciliation Act, 1996.

The **seat and venue of arbitration shall be Jammu, Union Territory of Jammu & Kashmir**. The proceedings shall be conducted in the English language.

The award of the arbitrator shall be final and binding upon the parties, subject to the provisions of the Arbitration and Conciliation Act, 1996.

18. Firm Prices

The rates and prices quoted by the Contractor shall remain valid during the bid validity period and may be subject to negotiation by the Contract Committee, if considered necessary and in the best interest of the Purchaser, before the placement of the Letter of Award (LoA). Any negotiated rates accepted by the Contractor shall form the basis of the Contract.

The rates and prices accepted by the Purchaser and incorporated in the **Letter of Award (LoA)** shall thereafter be **firm and fixed** for the entire duration of the Contract and shall not be subject to any escalation or variation on any account. Under no circumstances shall the Contractor be entitled to claim or charge any amount in excess of the rates and prices accepted in the LoA, except where expressly provided for under the terms and conditions of the Contract.

19. Disclosure regarding blacklisting / debarment and status of litigation:

The bidder shall furnish a complete and truthful declaration of its arbitration and litigation history, including all pending, concluded, and ongoing arbitration proceedings, court cases, and other legal disputes relating to its business, together with supporting documents and the current status of each case, as part of its bid.

Any bidder who has been blacklisted, debarred, suspended, or otherwise declared ineligible to participate in procurement by the Government of India, any Ministry/Department or Public Sector Undertaking thereof, any State Government or Union Territory Administration, any Department, Undertaking, or Public Sector Enterprise thereof, or any national or international multilateral funding agency or financial institution (such as the **Asian Development Bank (ADB)** or the **World Bank**), shall not be eligible to participate in the bidding process if such debarment, suspension, or blacklisting is in force and effective on the last date of submission of bids.

Where a bidder is debarred, suspended, or blacklisted after the submission of its bid but before the award of the Contract, and such debarment, suspension, or blacklisting remains in force on the date of award, the bidder shall be deemed ineligible for award of the Contract, and its bid shall be liable to be rejected.

The Purchaser reserves the right to verify the declarations made by the bidder from any appropriate source. If, at any stage of the bidding process or during the execution of the Contract, it is found that the bidder has concealed, suppressed, or misrepresented any material information relating to its arbitration or litigation history or debarment status, the Purchaser may reject the bid, cancel the award, terminate the Contract, and/or forfeit the Earnest Money Deposit (EMD) or Performance Security, as applicable, without prejudice to any other rights or remedies available under the Contract or applicable law.

20. Corrupt or Fraudulent Practices

The Bidder/Contractor shall observe the highest standards of integrity, ethics, and fairness during the bidding process and throughout the execution of the Contract.

For the purposes of this Clause:

(a) **"Corrupt Practice"** means the offering, giving, receiving, or soliciting, directly or indirectly, of anything of value to influence improperly the actions of any public official or any person connected with the procurement process or the execution of the Contract.

(b) **"Fraudulent Practice"** means any act or omission, including misrepresentation or concealment of facts, intended to influence the procurement process or the execution of the Contract to the detriment of the Purchaser, or to obtain an undue advantage.

(c) **"Collusive Practice"** means any arrangement or agreement between two or more bidders, with or without the knowledge of the Purchaser, designed to establish bid prices or other bidding conditions at artificial, non-competitive levels or otherwise to restrict fair competition.

(d) **"Coercive Practice"** means impairing or harming, or threatening to impair or harm, directly or indirectly, any person or property to influence improperly the procurement process or the execution of the Contract.

If, at any stage of the bidding process, during the execution of the Contract, or before the release of the final payment, the Purchaser determines that the Bidder/Contractor has engaged in any corrupt, fraudulent, collusive, or coercive practice, the Purchaser shall have the right to reject the bid, cancel the award, terminate the Contract, forfeit the Earnest Money Deposit (EMD) or Performance Security, withhold or recover any payment due to the Contractor, and take such other action as may be permissible under the Contract and applicable law.

The Purchaser may also declare the Bidder/Contractor ineligible, either for a specified period or indefinitely, to participate in future procurement of JKSPDC if it is found that the Bidder/Contractor has engaged in any of the practices referred to above.

BANNING OF BUSINESS DEALINGS

Without prejudice to any other rights or remedies available to JKSPDC, business dealings with an Agency may be banned by the Competent Authority on any of the following grounds:

i. Where security considerations, including concerns relating to the integrity or reliability of the Agency, so warrant;
ii. Where the proprietor, partner, director, or any key managerial person of the Agency has, during the preceding **five (5) years**, been convicted by a court of competent jurisdiction for an offence involving moral turpitude or corruption in connection with business dealings with the Government, any Government Department, or any Public Sector Enterprise;
iii. Where the Agency has been banned, blacklisted, or debarred by the **Ministry of Power, Government of India**, or any other Government Department or Public Sector Enterprise, and such debarment remains in force;
iv. Where the Agency has resorted to corrupt, fraudulent, collusive, coercive, or other unethical practices, including submission of false information, forged documents, or misrepresentation of facts;
v. Where the Agency attempts to influence the procurement process through intimidation, coercion, undue pressure, inducement, or any improper means upon JKSPDC or its officials;

vi. Where the Agency unlawfully occupies, damages, misuses, or interferes with JKSPDC's premises, land, buildings, equipment, water resources, forests, records, documents, or any other property.

The above grounds are illustrative and not exhaustive. The Competent Authority of JKSPDC may ban business dealings with an Agency for any other sufficient and justifiable reason, after following the principles of natural justice and providing the Agency a reasonable opportunity of being heard.

21. Cyber Security:

All systems, equipment, software, and associated services supplied or deployed under the Contract shall comply with the latest applicable cyber security requirements, standards, guidelines, and advisories issued by the Government of India, including but not limited to those issued by the **Indian Computer Emergency Response Team (CERT-In)** and the **Centre for Development of Advanced Computing (C-DAC)**, as amended from time to time.

The Contractor shall implement appropriate technical and organizational measures to ensure the confidentiality, integrity, availability, and protection of data and systems against unauthorized access, cyber threats, malware, and data breaches. The Contractor shall promptly report any cyber security incident affecting the systems or data related to the Contract to the Purchaser and shall take all necessary corrective and preventive actions at its own cost.

22. Security Deposit:

The successful bidder shall, within the time specified in the Letter of Award (LoA), furnish a **Performance Bank Guarantee (PBG)** for an amount equivalent to **5% (Five Percent)** of the Contract Value, pledged in favour of the **Chief Pay & Accounts Officer, Baglihar Hydroelectric Project (BHEP), Chanderkote**.

The Performance Bank Guarantee shall remain valid until the successful completion of the work and fulfilment of all contractual obligations under the Contract. The Purchaser may, if required, direct the Contractor to extend the validity of the Performance Bank Guarantee for such further period as may be necessary to cover any extension of the Contract period or fulfilment of the Contractor's obligations under the Contract. The Contractor shall ensure that the extended Performance Bank Guarantee is submitted before the expiry of the existing validity.

23. Pert Chart/Supply schedule:

Immediately upon issuance of the **Letter of Award (LoA)**, the successful bidder shall submit to the **Engineer-in-Charge (EIC)** a detailed **PERT Chart/Work Programme** indicating the sequence of activities, milestones, and the proposed schedule for execution and completion of the work, including the supply schedule, wherever applicable.

Executive Engineer
Generation Division BHEP-I
Chanderkote

E. ANNEXURE

(On Non-Judicial Stamp Paper)

A G R E E M E N T

This Agreement made the day of between Chief Engineer BHEP, CHANDERKOTE, DISTT. RAMBAN (J&K), hereinafter called "the employer" of the one part and
……
……of……
…… (herein after called "the Contractor") of the other part.
WHEREAS the Employer is desirous that certain works should be executed viz. The Permanent and Temporary works in connection with……
……and has accepted a Tender by the Contractor for the completion of such works and the maintenance of the Permanent Works.

NOW THIS AGREEMENT WITNESSED AS FOLLOWS:

In this Agreement words and expression shall have the same meanings as are respectively assigned to them in the condition of contract hereinafter referred to
The following documents shall be deemed to from and be read and construed as integral part of this Agreement viz.
The said Tender
The Drawings
The Specifications.
The Priced Bill of quantities.
General conditions of Contract and conditions contained in Contract form
Special conditions as incorporated in tender documents.
The consideration of the payments to be made by the Employer to the contractor as hereinafter mentioned the contractor hereby covenants with the employer to complete the works and maintain the permanent works in conformity in all respects with the provisions of the Contract.
The employer hereby covenants to the contractor in consideration of the construction and completion of the works and maintenance of the Permanent Works the contract Price at the times and in the manner prescribed by the Contract.
In witness where of the parties hereto have caused their respective signatures to be hereunto affixed the date and the year above written.

Signed By

Signed By

For and on behalf of the Contractor

For and on behalf of the Employer

(Performa of Bank Guarantee by State Bank of India or any other Schedule Bank-(To be on non-judicial stamp paper of requisite value).

GUARANTEE BOND

1. **In consideration of JKSPDC – Baglihar Power Station (hereinafter called the Corporation) having agreed to exempt _____(hereinafter called " the said contractor(s)" from the demand under the terms and conditions of an agreement dated_____ made between JKSPDC Ltd, Baglihar Power Station and _____ for _____(hereinafter called" the said agreement") of security deposit for the due fulfillment by the said contractor(s) of the terms and conditions contained in the agreement, on production of Bank Guarantee for Rs._____(Rupees_____)only, we _____ Bank _____ do hereby undertake to indemnify and keep indemnified and to pay to the Corporation to the extent of Rs._____(Rupees_____)only against any loss or damage caused to or suffered by the Corporation by reasons of any breach by the said contractor(s) of any of the terms and conditions contained in the agreement.**

2. **We _____Bank _____ do hereby undertake to pay the amount due and payable under this guarantee without any demur merely on a demand from the corporation stating that the amount claimed is due by way of loss or damage caused or would be caused or suffered by the corporation by reason of breach by the said Contractor(s) of any of the terms and condition contained in the said agreement, or by reason of the contractor(s) failure to perform the said agreement. Any such demand made on the Bank shall be conclusive as regards the amount due any payable by the Bank under this guarantee. However, our liability under this guarantee shall be restricted to an amount not exceeding Rs._____ (Rupees _____only).**

3. **We undertake to pay to the Corporation any money so demanded notwithstanding any dispute raised by the contractor(s) in any suit or proceeding pending before any court or tribunal or arbitration relating thereto. Our liability under this guarantee being absolute and unequivocal. The payment so made by us under this guarantee bond shall be a valid discharge of our liability of payment thereunder and the contractor(s) shall have no claim against us for making such payment.**

4. **We_____Bank _____ further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said agreement and that it shall continue to be enforceable till all the due4s of the corporation under or by virtue of said agreement have been fully paid and its claims satisfied or discharge or till JKSPDC Ltd. certified that the terms and conditions of the said contractor(s) and accordingly discharge this guarantee. Unless demand or claim under this guarantee is made on us in writing on or before_____ , we shall be discharge from all liability under this guarantee thereafter.**

5. **We _____Bank_____ further agree with the corporation shall have the fullest liberty without our consent and without effecting in any manner out obligation hereunder to vary any of the terms and conditions of the said agreement or extend time of performance by the corporation against the said contractor(s) and to force bear or enforce any of the terms and conditions relating to the said agreement and we shall not be relieved from our liability by reason of any such variation, or extension being granted to the said contractor(s) or for any forbearance, act or omission on the part of the Cooperation or any indulgence by the corporation to the said contractor(s) or by any such matter or thing whatsoever which under the law relating to sureties would, but for this provision have effect of so relieving us.**

6. **This guarantee will not be discharged due o the charge in the constitution of Bank of the contractors**

7. **We _____ Bank _____ lastly undertake not to revoke this guarantee during its currency except with the previous consent of the corporation in writing Dated_____day of____**

Annexure-A

Undertaking regarding black listing of the firm on stamp paper

To
Executive Engineer,
Generation Division
BHEP-I, JKPDC
Name of the firm/Agency
Name of the tender
Due date:

Sir,

1. **I/We hereby agree to abide by all terms and conditions laid down in tender document.**
2. **This is to certify that I/We before signing this bid have read and fully understood all the terms and conditions and instructions contained therein and undertake myself/ourselves abide by the said terms and conditions.**
3. **I/We abide by the provisions of Govt laws as amended by the Government from time to time and shall be fully responsible for any violation.**
4. **I/We do hereby confirm & declare that we M/s…….. (Firms name) is not blacklisted/de-registered/debarred by any Govt. Department/ PSU or any other Govt agency.**

(Signature of the Bidder)

Name and Address of the Bidder. Telephone No